

NNE pitch deck

The court record is complete and self-contained, so I'll synthesize the deck directly from the two bench rulings and the evidence pack.

PITCH — NNE — PROPOSED VERDICT: Buy a small starter (1/8 of full size) below \$19 ahead of the Aug 12 report, add only below \$15, re-hear after the print — PROPOSED — PENDING ADJUDICATION

What we believe

Nano Nuclear Energy is a pre-revenue microreactor developer trading at \$17.61, down 71% from its 52-week high of \$60.87. It holds roughly \$568.7M in cash and investments — about **\$10.92 per share** on the current 52.08M share count — so the market is paying about **\$348M for everything else**: the KRONOS reactor design (with a construction permit application formally accepted for review by the NRC, jointly with the University of Illinois), the ZEUS and ODIN designs, a fuel-enrichment and logistics effort, and a management team that has repeatedly raised large sums of money.

We believe three things survived both benches:

1. **The company cannot be forced into a bad capital raise.** Interest income roughly covers operating costs at today's rates, and the balance sheet is nearly all cash. There is no mechanism for a cash crisis before the Aug 12 report. (Caveat: this is a phase artifact — it ends when construction spending starts, reaffirmed for second-half 2027.)
2. **The regulatory milestone is real, if modest.** The NRC formally accepted the KRONOS construction permit application for review ([company announcement, May 2026](#)). Acceptance is a completeness check, not approval — but within its peer group of listed microreactor developers, a docketed application is a genuine distinction.
3. **The bankruptcy price the bears anchor on is not a fair-value anchor.** The KRONOS/MMR intellectual property was bought out of Ultra Safe Nuclear's Chapter 11 for \$8.5M in December 2024 — but the *sibling* asset from that same bankruptcy (the TRISO fuel business, sold for \$28M to Standard Nuclear) has since filed to go public at a **\$3.55 billion target valuation** ([TechCrunch](#)). Late-2024 bankruptcy marks in this sector were fire-sale prices, and that IPO is both the proof and a live comparable.

What the market believes

The stock's own history says the market has believed both extremes within twelve months: \$60.87 at the top of the nuclear-hype cycle, \$14.71 on July 17 near the bottom. Since that low it has rebounded about 20% into the Aug 12 report, which suggests some buyers are already positioning for good news at the

webcast. At \$17.61 the market is assigning the non-cash business ~\$348M — far above the \$8.5M bankruptcy purchase price, far below what a Standard-Nuclear-style re-rating would imply. In short: the market is treating this as a cheap, cash-backed lottery ticket that has already started to bounce.

Why we might have edge

- **A hard floor with no near-term breach mechanism.** Net cash of ~\$10.92/share limits the fundamental downside to about -38%, and both benches agree there is no way for the Aug 12 report to produce a “cash miss” — the company has no revenue to miss and its cash pile is stable-to-growing.
- **The bear anchor fails on evidence.** The red bench’s strongest kill — “the core asset cleared a competitive auction at \$8.5M, so anything above net cash is fantasy” — was overturned when the blue bench showed the same auction sold the sibling fuel business for \$28M and that business is now filing for a \$3.55B IPO. Distressed-auction prices from that window are demonstrably not fair value.
- **A live catalyst calendar.** The Q3 report and webcast are confirmed for Aug 12 (company press release, Aug 5). The Standard Nuclear IPO pricing, whenever it comes, is a second catalyst that would re-rate the whole asset class — and it is one the market may not yet connect to NNE.
- **An arm’s-length mark exists.** In October 2025, institutions put in **\$400M in an oversubscribed private placement** ([company announcement](#)) — real third parties paying real money for exposure to this asset base, albeit at bubble-era prices.

Why it might be priced in

The red bench’s surviving case is serious and we state it plainly:

- **The bounce has already happened.** The stock is up ~20% off its July 17 low in about three weeks, straight into the report. Whatever pop the webcast delivers is partially pre-paid, while the path back to \$14.71 remains open.
- **Insiders are sellers, not buyers.** The Chairman sold 745,900 shares at \$26–30 in June 2026; nine Form 4 filings and two Form 144s landed on a single day (June 5). A \$400M at-the-market program sits armed under a \$900M shelf. The share count has grown +118% in 26 months. Management’s demonstrated pattern is to convert enthusiasm into issuance.
- **NNE does not own the fuel.** The TRISO fuel that runs the KRONOS design was sold to Standard Nuclear — a competitor-adjacent supplier. This is a procurement dependency the bull brief never mentioned, and no supply agreement exists that we could find.
- **The milestone is softer than the headline.** The construction permit application was submitted by the University of Illinois in partnership with NNE, for a campus research unit, and acceptance for review explicitly “does not indicate approval.” A multi-year review likely follows.
- **Promotional history is documented.** A short report in July 2024 (with an ex-NRC chair calling the 2030–31 timeline unrealistic) and a securities class action over overstated regulatory

progress both happened. The suit was dismissed in full — but *without prejudice*, and the same management hosts the Aug 12 webcast.

What we checked ourselves

Claim	How checked	Found	Confirmed?
Share count ~50.2M (evidence pack)	10-Q cover page	52,083,294 — the pack’s figure was stale; both benches corrected it	✓ corrected — pack erred
“Stock ran +28% into the print” (red bench)	Pack’s live IBKR price vs red’s quote	Run is +20% off the low at \$17.61 , not +28% at \$18.85 — red priced its case on a stale quote and never reconciled against the pack it acknowledged	✓ corrected — red bench erred
KRONOS/MMR IP bought for \$8.5M in bankruptcy auction, Dec 2024	Company PR + trade press	Confirmed — but the “fatal valuation anchor” label failed: sibling asset from the same auction (\$28M) filed an S-1 at a \$3.55B target	✓ price confirmed; “fatal” overturned
Fuel business sold separately to Standard Nuclear	Trade press on the bifurcated sale	Confirmed — a supplier dependency, not a blocked input; Standard Nuclear sells fuel to reactor developers	✓
Securities class action “live” (red bench)	SDNY ruling + company PR, Jan 2026	Dismissed in full, all defendants, Jan 8 2026 (company PR ; court opinion, Justia) — red cited a dead case as live. Dismissal was without prejudice; refiling not checked	✓ dismissal confirmed — red bench erred
Dilution +118% in 26 months; \$400M ATM armed	Pack XBRL share series + Q2 release	Confirmed	✓
Chairman sold 745,900 shares at \$26–30; cluster of insider filings June 5	Form 4s / 144s in the pack	Confirmed	✓
NRC formally accepted the construction permit application	Company/university announcement	Confirmed — joint UIUC application; acceptance ≠ approval	✓
Red’s own “what would change my mind”: an arm’s-length third-party mark	Company IR	The Oct 2025 \$400M oversubscribed placement is exactly that mark — red demanded it while it already existed	✓ — red bench missed it
Q3 report date Aug 12	Company PR of Aug 5 naming the webcast	Confirmed (the pack had it only as an unconfirmed estimate)	✓
\$568.7M cash/investments → \$10.92/share net cash	Mirror-read of filings; SEC site blocked our direct fetch this session	Accepted by both benches for argument’s sake	⚠ not independently verified

PROPOSED ENTRY BANDS

All levels come from the benches’ own math (net cash \$10.92/share; current price \$17.61; report Aug 12, two trading days out):

- **Starter now, small:** 1/8 of a full position (half of the blue bench's quarter-weight) at or below **\$19.00**. Do not chase above \$19 into the Aug 12 report — above that, the pre-paid-bounce objection dominates.
- **Adds:** only below **\$15.00**, i.e., back near the July low, where the red bench conceded the asymmetry actually existed.
- **Red bench's alternative entry (if starting flat):** at or below **\$13.00** — no more than a 20% premium to net cash.
- **Downside marker:** net cash $\approx$ **\$10.92/share** (−38% from here). No fundamental floor above it; the July tape proved \$14.71 is reachable on this same balance sheet.
- **Exits/trims:** none set by either bench pre-print — deliberately. **Mandatory re-hearing after the Aug 12 report**, with Standard Nuclear's IPO pricing as the live comparable for what the reactor-IP stub is worth.
- **Catalyst dates: Aug 12, 2026** — Q3 report (10-Q filed pre-webcast) and webcast, confirmed by company PR. **Standard Nuclear IPO pricing** — S-1 filed July 7, 2026, date not yet set. **Second-half 2027** — construction spending begins, ending the “interest covers costs” cushion.

ARMED SENSORS

- NONE ARMED — the deck must flag this as a gap

This is a gap. For a name held on a small starter into a confirmed catalyst, the court record implies the following sensors should exist and none are armed:

- **Standard Nuclear (STDN) IPO watch** — pricing date and valuation; the blue bench made it the re-rating comp for the entire thesis.
- **Insider filing watch** — new Form 4s/144s; more distribution above \$19 strengthens the red case materially.
- **ATM issuance watch** — share-count delta on each 10-Q cover; the \$400M program firing into strength is the dilution tripwire.
- **Litigation refiling watch** — the SDNY dismissal was without prejudice; a third amended complaint reopens the promotional-provenance kill.
- **NRC docket watch** — progress (or requests for additional information) on the UIUC/KRONOS construction permit review.
- **Fuel-supply watch** — any agreement with Standard Nuclear or an in-house TRISO path; red's unrebutted dependency finding.
- **Price-band alerts** — \$15.00 (add gate) and \$13.00 (red's entry band) on the downside; \$19.00 chase-stop on the upside.

What remains unverified

- **The \$568.7M liquidity figure itself** — accepted by both benches from a secondary mirror; the SEC’s site blocked our direct fetch this session. The entire net-cash floor rests on it.
 - **Class-action refiling status** — dismissed without prejudice in January 2026; no refiling surfaced in six months, but we did not pull the current docket.
 - **Short interest and crowding** — neither bench could run positioning checks this session; we do not know whether the 3-week bounce is short-covering or new longs.
 - **NRC review duration** — “multi-year Part 50 review” is plausible but the NRC’s own pages blocked our fetch; not confirmed.
 - **The rate-path assumption** behind “interest income covers operating costs” — plausible, not modeled.
 - **Current status of the KRONOS demonstration timeline** — the ex-NRC-chair skepticism about 2030–31 was never answered on the merits by either bench.
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Both benches closed at 7/10 conviction on opposite verdicts — an evenly matched court. The blue bench’s ruling (starter, gated adds, mandatory post-print re-hearing) is the proposed verdict above; it is proposed, not adjudicated, and the principal sizes it.

One process note: this deck could not be written to `desk/reports/` or pushed to the dashboard from this session — file-write and shell access weren’t available — so the standing closing step (ledger upsert, entry plan, scanner re-run) is still owed for NNE, along with arming the sensors listed above.